

NO. 25-CI-002964

JEFFERSON CIRCUIT COURT
DIVISION FOUR (4)
JUDGE JULIE KAELIN*ELECTRONICALLY FILED*CHARLES TINKER, INDIVIDUALLY AND
AS EXECUTOR OF THE ESTATE OF
THELMA TINKER, DECEASED, ET AL.

PLAINTIFFS

v.

NOTICE-MOTION-ORDERUofL HEALTH-LOUISVILLE, INC.
d/b/a UofL HEALTH, ET AL.

DEFENDANTS

* * * * *

Please take notice that the undersigned will, on **Tuesday, May 26, 2025, at 10:15 a.m.**, make the following motion and tender the attached order.

**PLAINTIFFS' MOTION TO COMPEL UOFL DEFENDANTS TO ANSWER
4/13/2026 DISCOVERY**

Plaintiffs, by counsel, move the Court to compel Defendants, UofL Health, Inc, UofL Health-Louisville, Inc., and University of Louisville Physicians, Inc. ("UofL Defendants"), to respond to Plaintiffs' 4/13/2026 discovery.

On April 13, 2026, Plaintiffs served interrogatories and requests for production of documents on UofL Defendants. UofL Defendants' responses were due on May 13, 2026. To date, UofL Defendants have not responded to that discovery. A copy of Plaintiffs' discovery is attached as EXHIBIT 1.

On May 15, 2026, Plaintiffs wrote to Defendants requesting that they produce the discovery responses by Monday, May 18. On May 18, Defendants responded that they would produce the answers "by the end of the week." In

response, Plaintiffs reminded Defendants that they needed these responses because their expert disclosures are due June 3 and, therefore, requested the responses be provided no later than Thursday at 9 a.m. A copy of that email chain is attached as EXHIBIT 2. To date, Plaintiffs have not received Defendants' discovery responses.

Plaintiffs must file their expert witness disclosures on or before June 3, 2026. Plaintiffs need this additional discovery for their expert disclosures. Plaintiffs have been looking forward to their day in Court and do not want anything to jeopardize their November 30, 2026 trial date.

The signature below certifies that counsel have conferred with opposing counsel, they are unable to reconcile their differences, and all extrajudicial means have otherwise been exhausted to reconcile the differences with opposing counsel.

/s/ Sheldon L. Haden

Ann B. Oldfather (KBA 52553)
Sheldon L. Haden (KBA 88876)
Michael R. Hasken (KBA 94492)
Chancellor R. Peterson (KBA 101018)
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Counsel for Plaintiffs

CERTIFICATE OF SERVICE

The above signature certifies that, on May 21, 2026, the foregoing was electronically filed with the Clerk of Court using the KCOJ e-filing system and was served via email, in accordance with the notice of electronic service, to the following:

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*Counsel for Defendants, UofL Health –
Louisville, Inc., University of Louisville
Physicians, Inc., and UofL Health, Inc.*

NO. 25-CI-002964

JEFFERSON CIRCUIT COURT
DIVISION FOUR (4)
JUDGE JULIE KAE LIN*ELECTRONICALLY FILED*CHARLES TINKER, INDIVIDUALLY AND
AS EXECUTOR OF THE ESTATE OF
THELMA TINKER, DECEASED, ET AL.

PLAINTIFFS

v. **PLAINTIFFS' 4/13/2026 DISCOVERY TO DEFENDANTS,
UofL HEALTH-LOUISVILLE, INC., UofL HEALTH, INC., AND
UNIVERSITY OF LOUISVILLE PHYSICIANS, INC.**UofL HEALTH-LOUISVILLE, INC.
d/b/a UofL HEALTH, ET AL.

DEFENDANTS

* * * * *

Plaintiffs, by counsel, pursuant to CR 33 and 34, propound to Defendants, UofL Health-Louisville, Inc., UofL Health, Inc., and University of Louisville Physicians, Inc., the following Interrogatories and Request for Production of Documents. Unless a shorter time for compliance is ordered by the Court, your answers to these requests are due within thirty (30) days of the date of service hereof.

INSTRUCTIONS

These Discovery Requests shall be deemed continuing and supplemental answers and production shall be required of you pursuant to CR 26.05 if you or your counsel directly or indirectly obtain further information of the nature sought herein after the time the answers are served, and the documents are produced. In complying, you should produce each document in its original form together with any

non-identical copies of the document on which any mark, alteration or additional writing or change from the original, or from another copy, has been made or affixed. All documents should be produced in their original folders, binders, or boxes, in the same order in which they are kept in the ordinary course of business and shall include labels to show their source (e.g., “from Mr. Smith’s desk”). Copies may be produced in lieu of the originals *if* complete copies are provided, including without limitation inside and outside covers, dividers, tabs and the like, *and* if the originals are simultaneously available for inspection. Accordingly, each request herein for a document covers the original, each non-identical copy, as well as the folders, etc. in which the documents were kept.

Withheld or Redacted Material

If any document is withheld in whole or in part, please provide a privilege log, which must specify at a minimum the date of the document, the author(s), all recipient(s), the type of document (letter, memo, e-mail, etc.), a sufficient summary description of the contents of the document to allow your claim of privilege to be determined, the claim of privilege or protection upon which it is withheld, and your complete factual basis for that claim.

If any document is redacted, altered, or modified, in whole or in part, please ensure that the fact of redaction is plainly stated at the place where it is made, and please provide a privilege log as described above with respect to the redacted material.

The failure to provide the privilege log, or to plainly reflect any redaction, will be claimed as a waiver of any assertion of any claimed privilege or protection from discovery, or as an intentional failure to make discovery.

Objections

If you object to any Interrogatory or Request for Production of Documents, please state the following or words of the same import: “Notwithstanding the objection, all responsive information and materials, as the case may be, are nevertheless produced.” Failing such confirmation, we will assume that responsive materials known to party(ies) or counsel have been withheld from production or from the response to Interrogatory, as the case may be and we will proceed accordingly.

DEFINITIONS

All the non-defined words used in these interrogatories and requests for production are intended as defined by standard American usage, which is as specified in a standard dictionary of the English language. Moreover, each word or term used in these written discovery requests is meant to have the broadest possible meaning permitted by the Kentucky Rules of Civil Procedure.

As used in these interrogatories and requests for production, the following specifically identified words are intended to be defined as follows:

“You” or “your” means Defendant and their employees, agents, subsidiaries, and/or any persons connected with, acting, or purporting to act on behalf of them, including any employees or agents of Defendant.

“Person” or “persons” means and includes any natural person, corporation, partnership, joint venture, proprietorship, association, governmental or public entity, or any other form of organization or legal entity, and all their officials, officers, employees, representatives, and agents.

“Document” has the comprehensive meaning set out in CR 34 and includes all written, typed, printed, recorded or graphic statements, communications, or other matter, however produced or reproduced, and whether now in existence, in Your possession, custody, or control, including without limitation all electronically stored information.

As used in these written discovery requests, the singular of each word shall be construed to include its plural and vice versa; “and” and “or” shall be construed both conjunctively and disjunctively; “each” shall be construed to include “every” and vice versa; “any” shall be construed to include “all” and vice versa; and the present tense shall be construed to include the past tense and vice versa.

As used in these written discovery requests, the word “pertaining” means referring to, alluding to, responding to, connected with, commenting on, touching upon, consisting of, with respect to, about, constituent, containing, embodying, supporting, evidencing, regarding, discussing, identifying, recording, showing, describing, reflecting, relating to, or mentioning, the matter identified.

When asked to “describe” or “identify,” state at least the following:

- (a) The full name, home address, business address, employer, position and contact phone number and email address with respect to a natural person;

- (b) The full name, principal business address, phone number and email contact with respect to a corporation, partnership, or other business or government entity;
- (c) The speaker, each person who heard the communication, the substance of the communication and the time and place of the communication with respect to an oral communication;
- (d) The document's title and a description of its subject matter, the identity of the person or persons who prepared it, the identity of the recipients, its date, and if undated, its date of preparation, and its location and custodian, with respect to a written communication; and
- (e) The date(s) and time(s) at which an event occurred, the location at which it occurred and any witnesses to it or persons present at it, with respect to an event or occasion.

* * * * *

INTERROGATORIES

INTERROGATORY NO. 1. Identify every person who accessed the August 15, 2022 PET CT scan result in Thelma Marie Tinker's ("Timmi's) electronic medical record (EMR). For each person identified, state: (a) their full name and title; (b) the date and time of each access; and (c) the nature of each interaction (e.g., opened, viewed, forwarded, acknowledged, dismissed).

RESPONSE:

INTERROGATORY NO. 2. Identify every person who accessed the August 15, 2022 PET CT scan result through Timmi's MyChart patient portal. For each person identified, state: (a) their full name; (b) the date and time of each access; and (c) the type of interaction recorded in the audit log (e.g., viewed, printed, downloaded).

RESPONSE:

INTERROGATORY NO. 3. Define, as used within your EMR system, the term “acknowledged” as applied to a diagnostic result appearing in a provider’s inbox, including: (a) the specific action a provider must take in the system to trigger an acknowledgment; (b) whether an acknowledgment can occur without the provider opening or reading the result; and (c) whether an acknowledgment generates any automatic notification to the patient or another provider.

RESPONSE:

INTERROGATORY NO. 4. State the date and time on which the August 15, 2022 PET CT scan result for Timmi was first “acknowledged” in Dr. Gettis’s inbox, and identify the person whose account generated that acknowledgment.

RESPONSE:

INTERROGATORY NO. 5. Explain the routing pathway by which the August 15, 2022 PET CT scan result was transmitted within your EMR system upon completion of the scan, including: (a) which provider inboxes or queues received the result; (b) whether any automated alert or notification was sent to Dr. Gettis or her staff; and (c) whether any alert or notification was escalated or re-sent due to lack of acknowledgment, and if so, when.

RESPONSE:

INTERROGATORY NO. 6. Define, as used within your EMR MyChart system, the term “print” or “printed” as it appears in a patient portal audit log, including: (a) whether a “print” event is generated when a user saves a document as

a PDF without producing a physical printout; (b) whether a “print” event confirms that the user read or comprehended the printed document; and (c) whether a patient’s “print” event in MyChart generates any notification to the treating provider.

RESPONSE:

INTERROGATORY NO. 7. State whether a “print” event reflected in Timmi’s MyChart audit log on or around August 17, 2022 (in connection with the PET CT scan result) was generated by a physical print command, a PDF save, or another action, and describe how you determined which type of action occurred.

RESPONSE:

INTERROGATORY NO. 8. State whether any of your employees, agents, or representatives communicated the August 15, 2022 PET CT scan result to Timmi by any means—verbal, written, electronic, or through MyChart—at any time between August 15, 2022 and May 9, 2024. If yes, identify the person who communicated the results, the date and method of communication, and the substance of what was communicated.

RESPONSE:

INTERROGATORY NO. 9. Identify all documentation in Timmi’s medical records that reflect any communication—or attempted communication—of the August 15, 2022 PET CT scan result to her, and describe each such document by date, author, and content.

RESPONSE:

INTERROGATORY NO. 10. State whether your policies, procedures, or protocols in effect in July 2022 to present required a provider to communicate PET CT scan results reflecting a possible pulmonary malignancy directly to the patient, as opposed to relying on the patient's access to results through MyChart. If such a policy or protocol existed, identify the document by name and effective date.

RESPONSE:

INTERROGATORY NO. 11. State what it means, within your EMR system, for a result to be "acknowledged" in connection with a patient encounter, such as Timmi's April 24, 2024 visit to Dr. Gettis's office, and whether such an acknowledgment was automatically generated by the system or required a deliberate action by the provider.

RESPONSE:

INTERROGATORY NO. 12. State the total number of patients seen by Dr. Gettis each year from 2021 through 2024.

RESPONSE:

INTERROGATORY NO. 13. State the average number of patient encounters (office visits, telehealth visits, etc.) completed by Dr. Gettis per day and per week each year from 2021 through 2024.

RESPONSE:

INTERROGATORY NO. 14. State the number of full-time and part-time medical staff assigned to support Dr. Gettis's practice each year from 2021 through 2024.

RESPONSE:

INTERROGATORY NO. 15. State whether you set any minimum or maximum patient visits, patient encounters, and staffing ratios for primary care physicians, like Dr. Gettis, from 2021 through 2024, and if so, describe those standards and state whether Dr. Gettis's workload fell below, within, or exceeded them.

RESPONSE:

INTERROGATORY NO. 16. Identify by name, version, and effective date your policies, procedures, protocols, standard operating procedures (SOP), and workflow documents in effect January 1, 2020 through May 9, 2024, that governed: (a) a physician's obligation to review and act upon diagnostic imaging results, such as PET, CT, and x-ray results, that go to or appear in a physician's inbox; and (b) the obligation to notify a patient of diagnostic findings, including findings potentially indicative of malignancy.

RESPONSE:

INTERROGATORY NO. 17. Describe any automated system, alert, or escalation mechanism within your EMR system, from 2020 through 2024, to notify a provider, or their supervisor or staff, when a diagnostic result in a provider's inbox remained unacknowledged for a specified period of time, and state whether any such mechanism applied to Dr. Gettis's inbox.

RESPONSE:**REQUESTS FOR PRODUCTION**

REQUEST NO. 1. Produce your EMR user audit trails, showing all auditable actions performed, from July 1, 2022 through May 17, 2024, for Dr. Gettis. Names of patients other than Timmi Tinker should be redacted.

RESPONSE:

REQUEST NO. 2. Produce the complete MyChart patient portal audit trail log for Timmi's account from the date of her registration through May 17, 2024, including all entries reflecting any patient-side interaction with the August 15, 2022 PET CT scan report (e.g., viewed, printed, downloaded).

RESPONSE:

REQUEST NO. 3. Produce all documents sufficient to show the state and contents of Dr. Gettis's inbox from August 15, 2022 through April 24, 2024, including any screenshots, system-generated images, or records reflecting the location, status (read/unread, acknowledged/unacknowledged), and routing history of Timmi's PET CT scan result within that inbox.

RESPONSE:

REQUEST NO. 4. Produce a photograph, screenshot, or system-generated image of Dr. Gettis's inbox as it appeared on or around the date the August 15, 2022 PET scan result was received, and again as of the date it was acknowledged on April 24, 2024.

RESPONSE:

REQUEST NO. 5. Produce all technical documentation, user guides, training materials, or system specifications describing how your EMR system

“acknowledgment” function operates in a provider’s inbox, including the specific steps required to acknowledge a result and whether the system tracks the difference between a result that was opened and one that was merely acknowledged.

RESPONSE:

REQUEST NO. 6. Produce all technical documentation, user guides, training materials, or system specifications describing how your MyChart “print” function operates, including whether it distinguishes between a physical print and a PDF save, and whether the event generates any notification to the treating provider.

RESPONSE:

REQUEST NO. 7. Produce all documents in Timmi’s medical record reflecting any communication (including any attempted communication) of the August 15, 2022 PET CT scan result to her, her family, or any other provider, including telephone call logs, MyChart messages, letters, notes, and referral communications.

RESPONSE:

REQUEST NO. 8. Produce all telephone call logs, call center records, and staff notes reflecting any inbound or outbound calls between Dr. Gettis’s office and Timmi between August 15, 2022 and May 9, 2024.

RESPONSE:

REQUEST NO. 9. Produce all MyChart messages exchanged between Timmi and Dr. Gettis or any member of Dr. Gettis’s practice between August 15, 2022 and

May 9, 2024.

RESPONSE:

REQUEST NO. 10. Produce the complete medical record from Dr. Gettis's April 24, 2024 annual physical examination of Timmi, including all notes, orders, results reviewed, and any documentation reflecting Dr. Gettis's review of or response to the August 15, 2022 PET scan result on that date.

RESPONSE:

REQUEST NO. 11. Produce all your policies, procedures, protocols, SOPs, and workflow documents in effect from January 1, 2018 through May 9, 2024, governing: (a) a physician's obligation to review diagnostic imaging results (including PET, CT, and x-ray results) appearing in the physician's inbox; and (b) the obligation of a treating physician or staff member to directly communicate diagnostic findings (including findings indicative of malignancy) to the patient.

RESPONSE:

REQUEST NO. 12. Produce all training materials, onboarding documents, and continuing education materials provided to Dr. Gettis or her staff concerning the management of diagnostic results within your EMR system and the use of MyChart for patient communication.

RESPONSE:

REQUEST NO. 13. Produce all documents reflecting Dr. Gettis's total patients seen each year from 2021 through 2024.

RESPONSE:

REQUEST NO. 14. Produce all documents reflecting Dr. Gettis's patient encounters (including office visits, telehealth visits, etc.) completed on a monthly basis from January 2021 through May 2024.

RESPONSE:

REQUEST NO. 15. Produce all documents reflecting your staffing standards, productivity benchmarks, or RVU targets applicable to primary care physicians, including Dr. Gettis, during the years from 2021 through 2024.

RESPONSE:

Respectfully submitted,

/s/ Sheldon L. Haden

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Counsel for Plaintiffs

CERTIFICATE OF SERVICE

The above signature certifies that, on April 13, 2026, the foregoing was served via email, in accordance with the notice of electronic service, to the following:

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*Counsel for Defendants,
UofL Health – Louisville, Inc.,
University of Louisville Physicians,
Inc., and UofL Health, Inc.*

From: [Sheldon L. Haden](#)
To: "Ellie Davis"; [Ann B. Oldfather](#); [Ashley McKiernan](#); [Bennett Tuleja](#); [Chance Peterson](#); [Craig Johnson](#); [Cyndie Winger](#); [Faith O. Turner](#); [Jenny Peterson](#); [Katherine Kerns Vesely](#); [Kenneth H. Decker](#); [Michael R. Hasken](#); [Michelle Hurst](#); [Sondra E. Lea](#); [Suzanna D. Weiss](#); [Theresa Vaughn](#); [Yvette D. Arledge](#)
Subject: RE: Tinker v. Gettis, et al.
Date: Tuesday, May 19, 2026 3:13:00 PM

Given that our expert disclosures are due June 3, we need the answers by Wednesday evening or Thursday by 9am at latest so we can get a motion before the judge if we don't receive the answers.

From: Ellie Davis <edavis@tmslawplc.com>
Sent: Monday, May 18, 2026 1:26 PM
To: Sheldon L. Haden <slh@Oldfather.com>; Ann B. Oldfather <aoldfather@oldfather.com>; Ashley McKiernan <amckiernan@tmslawplc.com>; Bennett Tuleja <bennett.tuleja@steptoe-johnson.com>; Chance Peterson <cpeterson@oldfather.com>; Craig Johnson <craig.johnson@steptoe-johnson.com>; Cyndie Winger <cyndie.winger@steptoe-johnson.com>; Faith O. Turner <fturner@tmslawplc.com>; Jenny Peterson <jsp@Oldfather.com>; Katherine Kerns Vesely <veselyk@obtlaw.com>; Kenneth H. Decker <deckerk@obtlaw.com>; Michael R. Hasken <MHasken@oldfather.com>; Michelle Hurst <mhurst@tmslawplc.com>; Sondra E. Lea <sel@Oldfather.com>; Suzanna D. Weiss <SDW@oldfather.com>; Theresa Vaughn <theresa.vaughn@steptoe-johnson.com>; Yvette D. Arledge <arledgey@obtlaw.com>
Subject: Re: Tinker v. Gettis, et al.

We will have these to you by the end of the week.

From: Sheldon L. Haden <slh@Oldfather.com>
Date: Friday, May 15, 2026 at 11:22 AM
To: Ann B. Oldfather <aoldfather@oldfather.com>, Ashley McKiernan <amckiernan@tmslawplc.com>, Bennett Tuleja <bennett.tuleja@steptoe-johnson.com>, Chance Peterson <cpeterson@oldfather.com>, Craig Johnson <craig.johnson@steptoe-johnson.com>, Cyndie Winger <cyndie.winger@steptoe-johnson.com>, Ellie Davis <edavis@tmslawplc.com>, Faith Turner <fturner@tmslawplc.com>, Jenny Peterson <jsp@Oldfather.com>, Katherine Kerns Vesely <veselyk@obtlaw.com>, Kenneth H. Decker <deckerk@obtlaw.com>, Michael R. Hasken <MHasken@oldfather.com>, Michelle Hurst <mhurst@tmslawplc.com>, Sondra E. Lea <sel@Oldfather.com>, Suzanna D. Weiss <SDW@oldfather.com>, Theresa Vaughn <theresa.vaughn@steptoe-johnson.com>, Yvette D. Arledge <arledgey@obtlaw.com>
Subject: Tinker v. Gettis, et al.

Counsel –

Defendants, UofL Health-Louisville, Inc., UofL Health, Inc., and University of Louisville

Physicians, Inc.'s responses were due on May 13, 2026. As you know, our expert disclosures are due June 3. Please provide this discovery on or before Monday, May 18. Another copy is attached for your convenience.

Thanks,
Sheldon

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6C6DB90B-86E5-4957-AD18-914989FF38DF : 000019 of 000020

EXH : 000002 of 000002

NO. 25-CI-002964

JEFFERSON CIRCUIT COURT
DIVISION FOUR (4)
JUDGE JULIE KAE LIN*ELECTRONICALLY FILED*CHARLES TINKER, INDIVIDUALLY AND
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PLAINTIFFS

v.

ORDERUofL HEALTH-LOUISVILLE, INC.
d/b/a UofL HEALTH, ET AL.

DEFENDANTS

* * * * *

On Motion of Plaintiffs, and the Court being otherwise sufficiently advised,

IT IS HEREBY ORDERED that Plaintiffs' motion to compel Defendants, UofL Health-Louisville, Inc., UofL Health, Inc., and University of Louisville Physicians, Inc. ("UofL Defendants"), to answer Plaintiffs' 4/13/2026 Interrogatories and Requests for Production is **GRANTED**. Defendants shall fully and completely respond to this discovery by Wednesday, May 27, 2026.

JULIE KAE LIN, JUDGE
DIVISION FOUR

Tendered by:

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Michael R. Hasken
Chancellor R. Peterson
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